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CASE #	CASE NAME	HEARING NAME
CVPS2406011	QUIET WING AEROSPACE, LLC VS COULSON AVIATION (USA), INC.	PLAINTIFF/X-DEFENDANT QUIET WING AEROSPACE, LLC'S MOTION FOR SUMMARY JUDGMENT ON CROSS-COMPLAINT OF COULSON AVIATION (USA), INC.

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

Beginning in 2020, Plaintiff Quiet Wing Aerospace, LLC ("Plaintiff") and Defendant Coulson Aviation (USA), Inc, ("Defendant") began discussion regarding a mutually beneficial business arrangement relating to auxiliary aircraft fuel tanks for certain Boeing aircrafts. Negotiations broke down in 2023 but were later resumed. In October 2023, Defendant represented that it wanted to check whether the fuel tank would fit Boeing 300 series aircraft. Plaintiff agreed to lend Defendant a tank for the single purpose of fit testing it. Defendant picked up the tank, as well as drawings, plans and specs for the tank. On December 17, 2023, Plaintiff sent Defendant a proposed cooperation agreement. Defendant did not agree to the terms and made redline changes. Ultimately, the parties were not able to come to an agreement. Plaintiff demanded the return of the tank and drawings and began making arrangements for pickup. However, as of September 2024, Defendant refused to return the property.

On September 25, 2024, Plaintiff filed its Complaint. It asserts four causes of action for: (1) Conversion; (2) Injunctive Relief; (3) Declaratory Relief; and (4) Breach of Nondisclosure Agreement/Specific Performance.

On December 17, 2024, the Court issued a temporary restraining order ("TRO").

On January 10, 2025, the Court issued an order for writ of possession, directing Coulson to turn over possession of the tank and drawings to Quiet Wing. (RJN Ex. E.) On the same day, the court issued a preliminary injunction prohibiting Coulson from transferring any interest in Quiet Wing's property by sale, concealing or removing Quiet Wing's property, and impairing the value of the property; and mandating that Coulson transmit to Quiet Wing various certifications, including that no copies of the drawings had been made and to destroy or return any copies that had been made. (RJN Ex. F.) Those certifications were eventually provided after Quiet Wing applied for an OSC re: why Coulson and its COO should not be found in contempt of court for not producing the required certifications. (UMF 25-27.)

The tank, disputed equipment, is now back in Quiet Wing's possession pending final resolution of the parties' dispute over its ownership and possessory rights.

On January 16, 2025, Coulson Aviation filed its Cross-Complaint against Quiet Wing alleging: (1) breach of oral agreement; and (2) promissory estoppel.

On July 25, 2025, the court entered a Stipulation and Protective Order that restricts the use of materials designated "confidential" to this litigation and expressly prohibits any use "for any business or other purpose whatsoever." (Protective Order ¶7.)

Plaintiff Quiet Wing brings two separate motions for summary judgment/adjudication. Quiet Wing's second motion for summary judgment is to the entire Cross-Complaint, which consists of a breach of oral agreement claim and a promissory estoppel claim. Quiet Wing argues the breach

of oral agreement claim fails because there was no agreement between the parties. Quiet Wing argues the promissory estoppel claim fails because, since the parties did not agree to any material terms of an agreement, any alleged reliance by Coulson on the existence of an agreement between the parties was unreasonable.

Coulson opposes arguing there are triable issues of material facts as to all of the challenged causes of action. Coulson argues there was an agreement between the parties and it did not breach the NDA between the parties. Coulson argues it purchased the tank pursuant to a purchase agreement between the parties.

Evidentiary Objection(s)

Quiet Wing makes eleven (11) objections to evidence offered in support of Coulson's Opposition to the MSJ on Coulson's Cross-Complaint. Quiet Wing objects to Exhibits G, H, I, K, O, S, and U. (Objections 1-7.) Quiet Wing objects to these documents to the extent Coulson attempts to demonstrate the document contains material terms of the parties' alleged agreement (1-4). Quiet Wing objects to Exhibit O as an incomplete document. Quiet Wing objects to Exhibits S and U as irrelevant. DECLINED TO RULE ON 1-7 AS NOT MATERIAL TO RULING. OBJECTION 8-11 ARE OVERRULED.

Quiet Wing also objects to deposition testimony. Quiet Wing argues Britton Coulson's statements constitute improper legal conclusions about whether an agreement existed between the parties. As discussed below, whether the parties mutually assented to an agreement is an objective inquiry where the court does not look to the parties' unexpressed intentions or understandings. These statements are not inadmissible. Whether they are relevant to the court's analysis is another matter.

Summary Adjudication

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Defendant, as the moving party, has the burden to show either that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2).) Defendant can meet their burden by showing either: (1) affirmative evidence that shows an element of the claim cannot be established; or (2) showing an absence of evidence on a critical element of Plaintiff's claim.

Where Plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a cause of action entitling plaintiff to judgment. (CCP § 437c(p)(1).) It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (See CCP § 437c(p)(1); *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

Once the moving party has made such a showing, the burden shifts to the responding party to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) If the responding party does not make such a showing, summary judgment in favor of the moving party is appropriate.

"The purpose of the summary judgment procedure is not to try the issues but merely to discover ... whether the parties possess evidence which demands the analysis of trial." (*Colvin v. City of*

Gardena (1992) 11 Cal.App.4th 1270, 1275 (italics added).) Summary judgment can be granted only where the essential facts are either conceded or beyond dispute. If there is one, single material fact in dispute, the motion must be denied.

The court also has the power to summarily adjudicate that one or more causes of action have no merit, that there is no merit to one or more affirmative defenses, or that a defendant owed or did not owe a duty to plaintiff. A motion for summary adjudication shall only be granted if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (CCP §437c(f)(1).)

1ST Cause of Action - Breach of Oral Agreement

Quiet Wing argues Coulson cannot prevail on this cause of action for three reasons. First, there was no mutual assent between the parties on all material terms and conditions of the alleged oral agreement. Second, since Coulson responded to Quiet Wing's offer (the DCA) with a "counteroffer" (the redlined DCA), it rejected the terms and conditions of the DCA. Third, even if Coulson accepted the terms of the DCA, the DCA was too uncertain to be enforceable.

Mutual Assent

"An essential element of any contract is the consent of the parties or mutual assent." (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270; Civ. Code §§ 1550, 1565.) Consent is typically shown by one party's offer, followed by the other's acceptance and its communication to the offeror. (Rest. 2d Contracts §§ 22(1), 23-24.) "Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and act, and not their unexpressed intentions or understandings." (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293 (citations omitted).) "The parties' outward manifestations must show that the parties all agreed 'upon the same thing in the same sense.'" (Ibid.) "The question is what the parties' objective manifestations of agreement or objective expressions of intent would lead a reasonable person to believe." (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1231 (citations omitted) (trial court granted summary adjudication of a breach of oral contract claim on the ground moving party succeeded in showing opposing party could not establish the existence of an oral contract).)

Quiet Wing argues the undisputed facts demonstrate the parties never agreed to all the material terms of a business venture. First, Britton's January 24, 2024 comment on the sticky note DCA shows there was no meeting of the minds on that material issue. (UMF 47.) Quiet Wing argues it is objectively reasonable to conclude that agreement was material to any contract between the parties. Quiet Wing also points to Britton's statements during negotiations which, Quiet Wing contends, reflect Coulson's lack of assent to the material terms of the proposed DCA. Specifically, Quiet Wing relies on UMF 41 and 54. Also on March 12, 2024, Britton sent Swift a redlined version of the DCA. (UMF 53.) Quiet Wing notes Coulson's redlined DCA contained 108 lines of changes and included material changes that sought to change the agreement from between the parties (UMF 53-62.) Neither party signed the DCA or the sticky note DCA. (UMF 50.) Quiet Wing never agreed to the terms and conditions of the redlined DCA. (UMF 63.) This evidence is sufficient to meet Quiet Wing's initial burden on summary judgment to show there was no mutual assent and, as a result, no agreement between the parties.

In Opposition, Coulson does not dispute many facts offered by Quiet Wing. Rather, Coulson disputes the *meaning* of various facts. For example, Coulson does not dispute that Britton sent the "sticky note DCA" with the comment: "What are you classifying as confidential data?" (UMF 48.) Instead, Coulson argues this provision was not "material" because Britton's email asked a clarifying question and did not condition acceptance on resolution of the question. (Response to

UMF 48.) Additionally, Coulson acknowledges Britton sent Swift a document (Response to UMF 53.) However, Coulson challenges (Response to UMF 53.) Coulson's evidence supporting this assertion is the Rios Gomez Declaration, Exhibit S. This Exhibit is an email thread between Swift and Britton Coulson, asking for answers to questions raised in an email chain between Abdulla Abdul Latheef and Peter Swift. This does not support Coulson's assertion that its intent was to prepare a separate agreement with the DCA as the starting point. Furthermore, as noted above, the relevant question in determining whether there was mutual assent to a contract is the parties' outward and objective manifestations of intent. (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293.) Unexpressed intentions or understandings are irrelevant. (Ibid.)

Here, Coulson does not present any evidence that demonstrates a triable issue of material fact. Rather, Coulson challenges the meaning of agreed-upon facts. Coulson contends Response to UMF 48. However, the very characterization of the question as "clarifying" indicates the parties had not come to an agreement about the terms in the DCA. Swift, Quiet Wing's COO, testified that he interpreted Britton Coulson's comment "other than that, it looks good" to mean Coulson was "in general agreement" with the DCA. (Rios Decl. Ex. C, 99:7-8.) Both Coulson's comment and Swift's testimony indicate both parties believed Coulson agreed and assented to the DCA generally, but not entirely. Again, there is no dispute about the facts. Instead, the parties disagree about whether the undisputed facts mean there was mutual assent to the terms of the DCA. Based on the evidence before the court, there was no mutual assent.

Without mutual assent, there can be no agreement. (Civil Code §§1550, 1565, 1580; *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.) Thus, Coulson cannot succeed on its breach of oral agreement claim. GRANTED.

Counteroffer/Rejection of DCA

The terms of an acceptance must match those in the offer. (*Panagotacos v. Bank of America* (1998) 60 Cal.App.4th 851, 855-856.) Acceptance of an offer must be absolute and unqualified. (Civil Code §1585.) If the offeree proposes different terms, this constitutes a counteroffer. A counteroffer extinguishes the original offer, meaning it can no longer be accepted. (Civil Code §1585.) A mere request or inquiry proposing different terms may not constitute a counteroffer. (Rest.2d Contracts §39, comm.b, 61.)

As discussed above, the undisputed facts show Coulson did not agree to all terms in the DCA as written. Instead, Coulson thought the agreement looked good *but for* the issue of what was classified as confidential data. Quiet Wing also argues that Coulson's statement the rest of the agreement "look[ed] good" is not objectively understood to amount to an absolute and unqualified acceptance of all terms. Quiet Wing is correct – Coulson's statement did not indicate an absolute and unqualified acceptance of the terms of the DCA. The court need not delve into the issue of whether Coulson's return of the sticky note DCA constituted a counteroffer because whether it did or did not the undisputed evidence demonstrates the parties did not mutually assent to the terms of the DCA at any time.

There was no mutual assent and no agreement. For this reason, the motion must be granted.

Uncertainty

Quiet Wing also provides evidence that the DCA reflected preliminary negotiations and a mere "agreement to agree," which is unenforceable as a contract. "If the document or contract that the parties agree to make is to contain a material term that is not already agreed on no contract has been made; and the so-called 'contract to make a contract' is not a contract at all." (*Louis Lesser Enterprises, Limited v. Roeder* (1962) 209 Cal.App.2d 401, 408.)

Quiet Wing presents evidence that the parties “agreed to agree” to various essential terms of the parties’ business arrangement. (UMF 28-31, 37-40.) The DCA includes an agreement to this (UMF 19.) Quiet Wing has presented evidence that the DCA, which the parties never mutually assented to, was simply an agreement to agree which is not enforceable as a contract. Coulson challenges this point in Opposition to the motion, but ultimately the contents of the agreement itself are irrelevant since the parties did not mutually assent to the terms.

2nd Cause of Action - Promissory Estoppel

The doctrine of promissory estoppel is an equitable remedy: “A promise which the promisor should reasonably expect to induce action or forbearance on the part of the promisee or third person and which does induce such action or forbearance is binding if injustice can be avoided only by enforcement of the promise.” (Rest.2d Contracts § 90(1); *C & K Engineering Contractors v. Amber Steel Co., Inc.* (1978) 23 Cal.3d 1, 6.) The elements of a promissory estoppel claim are: (1) a clear and unambiguous promise; (2) reasonable and foreseeable reliance by the party to whom the promise is made; (3) enforcement necessary to avoid injustice; (4) causation; and (5) harm or injury to the party asserting estoppel. (*US Ecology, Inc. v. State of Calif.* (2005) 129 Cal.App.4th 887, 901-905, 908.)

Quiet Wing argues Coulson’s promissory estoppel claim fails because Coulson’s alleged reliance upon the existence of an oral agreement between the parties was unreasonable. Quiet Wing argues based on the back and forth between the parties, it would be clear to any reasonable person that the parties were still negotiating and attempting to finalize an agreement. However, since there was no agreement, Quiet Wing argues Coulson’s reliance on any non-existent agreement was unreasonable.

Plaintiff’s reliance on the promise must be reasonable. If a party’s reliance on a statement is one which no reasonable person would rely, it is not justifiable. (*Daniels v. Select Portfolio Service, Inc.* (2016) 246 Cal.App.4th 1150, 1179 (disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948.)) “Estoppel cannot be established from...preliminary discussions and negotiations.” (*Granadino v. Wells Fargo Bank, N.A.* (2105) 236 Cal.App.4th 411, 417 (citing *Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1044.)) To establish a claim for promissory estoppel, the complaining party must demonstrate a promise was made and the complaining party relied on that promise to its detriment. (*Id.* at 437.) A promise is “an assurance that a person will or will not do something.” (Black’s Law Dictionary (12th ed. 2024))

In support of the motion, Quiet Wing relies on the same evidence discussed above: Coulson made multiple statements that the DCA did not reflect the parties understandings and discussions; the sticky note DCA demonstrated the parties did not agree to a material term of the agreement and the redlined DCA with material changes to the agreement indicated Coulson had not assented to the terms of the agreement. (UMF 41, 47, 53-62.)

Quiet Wing also points to the language of the NDA, DCA and redlined DCA and argues those documents all put Coulson on notice that it would be unreasonable to incur expenses in excess of \$1 million in reliance on Quiet Wing’s statements and conduct. The NDA states UMF 6. The DCA states UMF 21. Both the initial DCA and the redlined version stated each party would assumed its own costs associated with the negotiation, execution, and completion of the agreement. (UMF 39.)

From this evidence, it is unclear what promise Coulson contends it relied on. Quiet Wing has met its initial burden. The burden now shifts to Coulson to demonstrate a triable issue of material fact.

Coulson contends it “spent a significant amount of money” to induce one of its 737-300 aircraft into maintenance and began interior-design work to convert it from a passenger airplane into a corporate airplane. (AMF 16.) That conversion required removing the aircraft from storage and performing and estimated two to three million dollars of heavy maintenance. (AMF 17.) Coulson argues Quiet Wing applied “immense pressure” on Coulson to move quick so that Quiet Wing could complete the testing it needed. (Rios Gomez Decl. Ex. B (Coulson Depo 156:20-157:14.) Coulson’s evidence shows it relied on the agreement it believed existed between the parties, but it does not address whether that reliance was reasonable. Again, it is not clear what promise Quiet Wing made that Coulson relied on. Without a promise, there can be no promissory estoppel. Furthermore, even if there was a promise, the evidence demonstrates Coulson’s reliance on any promise between the parties was unreasonable. The parties never signed an agreement and, instead, were consistently discussing the terms of an agreement. (UMF 41-47, 51-52, 54.) Coulson relies heavily on Coulson’s statement the rest of the agreement “look[ed] good” when it sent back the sticky note DCA. Again, this evidence does not create any triable issue of material fact as the parties agree upon the facts. Coulson believes its reliance on an unclear promise was reasonable. Quiet Wing believes it was not. Quiet Wing is correct. GRANTED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501570	BOBS LLC, A NEVADA COMPANY VS CRITICAL ELECTRIC SYSTEMS GROUP LLC, A CALIFORNIA COMPANY	MOTION TO COMPEL DEFENDANT CRITICAL ELECTRIC SYSTEMS GROUP, LLC TO PROVIDE FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO, BY BOBS LLC, A NEVADA COMPANY, PRIME ASSET, LLC

Tentative Ruling: Hearing continued per request and stipulation of parties to Monday, July 27, 2026 at 8:30 a.m., Department PS2.

No further briefing will be permitted.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507350	D'SOL VS SELECT PORTFOLIO SERVICING, INC.	MOTION FOR LEAVE TO AMEND 1ST AMENDED COMPLAINT FOR OTHER REAL PROPERTY OF LUNA D'SOL BY LUNA D'SOL

Tentative Ruling: Granted.

No opposition filed.

Moving party to file their proposed Second Amended Complaint within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.